

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[full name, including middle names(s)]

Applicant

and

[full name, including middle names(s)]

Respondent

Response to Variation Application

To: [name(s) of applicant or applicants]

The respondent requests an order or orders be varied

The respondent, [name of party] is applying to vary or change an order or orders which is permitted by the following: [may delete the one that does not apply]

- ☐ section 17 of the *Divorce Act*;
- ☐ section 37 of the *Parenting and Support Act*.

The changes would affect the following order or orders: [include the title and date of each order]

The changes would affect the following child or children: [leave blank if there are no children affected]

Child's Last Name	First and Middle Names	Date of Birth (d/m/y)

The requested changes are as a result of a change in circumstances which are described in the respondent's affidavit provided with this application.

The requested changes concern the following: [check only those that apply]

☐ parenting/contact

☐ decision-making responsibility/custody

☐ parenting time [choose one]

☐ primary care (time in excess of 60%)

☐ shared parenting (time between 40-60%)

☐ other

☐ relocation of the child

☐ preventing ☐ authorizing

☐ relocation of a parent

☐ contact time or interaction

☐ grandparent contact time or interaction

☐ other

☐ child support:

☐ table amount

☐ special or extraordinary expenses

☐ change in number of dependent children

☐ retroactive variation

☐ termination of child support

☐ administrative recalculation of child support

☐ other [give specifics] _____

☐ spousal support

☐ retroactive variation from _____ to _____

☐ termination of spousal support

☐ other [give specifics]

☐ arrears of support [give specifics] _____

☐ other [give specifics] _____

As part of the response to variation application, the respondent is applying: [check only those that apply]

- ☐ under section 15 of the *Maintenance Enforcement Act* to address a dispute between the parties about the amount of arrears
- ☐ under section 46(4) of the *Maintenance Enforcement Act* for relief from payment of arrears

The respondent requests that the changes take effect as of (date) _____
and the respondent must present evidence in support of this date.
[may specify for each change if necessary]

Other relevant proceedings and orders

The respondent confirms that: [may delete the one that does not apply]

- ☐ There are, and there were, *no* other proceedings between the parties, or proceedings/ circumstances affecting the well-being or safety of the children/parties.

OR

- ☐ There are, or there were, other proceedings between the parties, or proceedings/circumstances affecting the well-being or safety of the children/parties, details of which are as follows: [complete the sections below for each proceeding]

Type of proceeding(s) & court file number: [describe each, for instance civil, protection, criminal or other proceeding] _____

Order(s) or other measure: [describe, such as an order to protect a person's safety, recognizance or undertaking, peace bond, condition, etc.] _____

Circumstance(s): [describe] _____

Documents in support of response

The respondent files the following documents in support of the response:

- ☐ parenting statement
- ☐ statement of contact time and interaction
- ☐ statement of income

- ☐ statement of special or extraordinary expenses
- ☐ statement of undue hardship circumstances
- ☐ statement of expenses
- ☐ statement of property
- ☐ pre-hearing brief
- ☐ affidavit of [name of respondent]
which includes evidence establishing change in circumstances and
evidence supporting the effective date
- ☐ other affidavits and documents [give specifics]_____
- ☐ _____
certified copy of each order that the applicant seeks to vary

A copy of each document is to be delivered to you with this notice.

Designated address for service

The respondent designates the following address for delivery of documents:

Documents delivered to this address will be considered to be received by the respondent on delivery.

Signature & certificate of respondent

By signing below, I confirm that this is my response and certify that I am aware of my duties, including:

1. I must exercise any decision-making responsibility or parenting time allotted to me, or contact time under a contact order, in a manner that is consistent with the best interests of the child/children;
2. To the best of my ability, I must protect the child/children from conflict arising from this proceeding;
3. To the extent that it is appropriate to do so, I must try to resolve the issues in this proceeding through a family dispute resolution process;
4. I must provide complete, accurate and up-to-date information as required under law, as part of this proceeding and under a Court Order; and,

5. If I am subject to an order, I must follow and comply with the order until it is no longer in effect.

Signed _____, 20____

Signature of respondent
Print name:

[complete additional signature if more than one respondent]

Signed on _____, 20____

Signature of respondent
Name:

Counsel's certificate [delete if not represented by counsel]

I, counsel for the respondent, certify that I have complied with the requirements of section 7.7 of the *Divorce Act*/section 54C(2) of the *Parenting and Support Act*.

Signature of counsel

For delivery with supporting documents to each applicant:
[full name and address of each]